

CONTRACT TYPE: Employment Contract

RISK PROFILE: VENDOR-FRIENDLY (risky for client)

EMPLOYMENT AGREEMENT

Effective Date: [____], 2024

This Employment Agreement (hereinafter "Agreement") is entered into as of the Effective Date by and between **ACME Corporation**, a corporation organized under the laws of the State of Delaware, with its principal place of business at 100 Technology Drive, San Francisco, California 94105 ("Company"), and **[Employee Name]**, an individual residing at [Employee Address] ("Employee").

WHEREAS, Company desires to employ Employee and Employee desires to accept such employment on the terms and conditions set forth herein; NOW, THEREFORE, in consideration of the mutual covenants herein and for other good and valuable consideration, the Parties agree as follows:

1. POSITION AND DUTIES

1.1 Position. Company employs Employee in the position of [Job Title], reporting to [Manager / Title]. Company may change Employee's position, duties, reporting structure, or work location at any time without notice and without constituting a constructive dismissal or triggering any severance obligations.

1.2 Duties. Employee shall perform all duties as assigned by Company from time to time, devoting Employee's full working time and best efforts to Company's business. Employee shall not engage in any other employment, consulting, or business activity without Company's prior written consent.

1.3 Policies. Employee shall comply with all Company policies and procedures, which may be modified, supplemented, or replaced by Company at its sole discretion at any time without notice.

2. COMPENSATION

2.1 Base Salary. Company shall pay Employee an annual base salary of [\$ Amount] less applicable withholdings. Company may review and adjust base salary at its sole discretion, including reductions, provided that Employee's base salary shall not be reduced below the applicable minimum wage. No adjustments shall give rise to any severance or other compensation obligation.

2.2 Incentive Compensation. Employee may be eligible for a discretionary bonus at Company's sole discretion. The determination of whether to pay any bonus, and the amount thereof, is entirely within Company's discretion and shall not create any expectation of future bonus eligibility. Any bonus is forfeited if Employee is not actively employed on the date of payment.

2.3 Equity. Any equity grant is subject to Board approval and the terms of Company's equity plan, which may be modified at any time. Unvested equity shall be forfeited immediately upon termination of employment for any reason.

3. BENEFITS

3.1 Employee may be eligible to participate in Company's benefit programs as may be offered from time to time. Company reserves the right to amend, suspend, or terminate any benefit plan at any time and for any reason in its sole discretion without obligation to Employee.

4. AT-WILL EMPLOYMENT AND TERMINATION

4.1 **At-Will Employment.** Employee's employment is at-will. Either Party may terminate employment at any time, with or without cause, and with or without advance notice, subject to Section 4.2.

4.2 **Notice.** Company agrees to provide Employee with at least seven (7) days' advance written notice of termination without cause, or, at Company's election, pay in lieu of such notice at Employee's base salary rate. Employee agrees to provide Company with thirty (30) days' advance notice of voluntary resignation. Company may waive Employee's notice period and place Employee on garden leave during any notice period.

4.3 **Termination for Cause.** Company may terminate Employee's employment immediately, without notice or compensation, for Cause. "Cause" means, as determined by Company in its sole reasonable discretion: (a) failure to perform duties to Company's satisfaction; (b) violation of any Company policy; (c) any conduct that Company determines is detrimental to Company's business, reputation, or relationships; (d) misconduct or insubordination; or (e) breach of this Agreement.

4.4 **No Additional Severance.** Unless specifically agreed in writing by an authorized officer of Company, Employee shall not be entitled to any severance pay, benefits continuation, or other compensation upon termination beyond any notice or payment in lieu required by applicable law.

5. NON-COMPETE AGREEMENT

5.1 **Restriction.** Employee agrees that during employment and for six (6) months following termination for any reason ("Restricted Period"), Employee shall not, directly or indirectly, engage in, own, manage, operate, be employed by, provide services to, or be connected with any Competing Business anywhere in the world where Company conducts or plans to conduct business as of the date of termination.

5.2 **"Competing Business"** means any business or enterprise that: (a) is engaged in the development, sale, marketing, or distribution of products or services that are the same as, similar to, or competitive with any products or services of Company; or (b) is reasonably likely to benefit from Employee's knowledge of Company's Confidential Information.

5.3 **Reasonableness.** Employee acknowledges that these restrictions are reasonable and necessary to protect Company's legitimate business interests, including its trade secrets, customer relationships, and goodwill, and that Company's remedies at law would be inadequate in the event of a breach.

5.4 **Garden Leave Payment.** In exchange for the non-compete obligations, Company agrees to pay Employee an amount equal to Employee's base salary for the duration of the Restricted Period, provided Employee is not in breach of any obligation under this Agreement.

6. NON-SOLICITATION

6.1 During the Restricted Period, Employee shall not, directly or indirectly: (a) solicit, recruit, or induce any employee, contractor, or agent of Company to terminate their relationship with Company; (b) solicit or accept business from any current or prospective customer, client, or partner of Company with whom Employee had contact or about whom Employee learned Confidential Information during employment; or (c) interfere with any of Company's business relationships.

7. CONFIDENTIALITY

7.1 Employee agrees to hold in strict confidence all Confidential Information during and after employment, indefinitely. "Confidential Information" includes all non-public information of Company, whether or not marked as

confidential, including trade secrets, customer data, financial information, technology, strategies, and personnel information.

7.2 Upon termination, Employee shall immediately return all Company property and certify in writing the return and destruction of all Confidential Information.

8. INTELLECTUAL PROPERTY ASSIGNMENT

8.1 Broad Assignment. Employee irrevocably assigns and transfers to Company all right, title, and interest in and to all inventions, works of authorship, developments, discoveries, improvements, and ideas ("Inventions") conceived, developed, or reduced to practice by Employee: (a) during employment; (b) within six (6) months after termination of employment if related to Company's business; (c) using Company's equipment, facilities, information, or resources; or (d) related to the actual or reasonably anticipated business, research, or development of Company.

8.2 Moral Rights. Employee hereby waives all moral rights in all Inventions to the maximum extent permitted by applicable law.

8.3 Assistance. Employee agrees to execute all documents and take all actions that Company may request to evidence, record, and perfect Company's ownership of all Inventions, during and after employment, at Company's expense.

9. GOVERNING LAW

9.1 This Agreement shall be governed by the laws of the State of California. Any disputes shall be subject to binding arbitration on an individual basis; Employee waives any right to a jury trial and waives the right to bring or participate in any class or collective action.

9.2 Entire Agreement; Modification. This Agreement supersedes all prior agreements. Company may modify this Agreement upon thirty (30) days' written notice; continued employment constitutes acceptance.

IN WITNESS WHEREOF, the parties hereto have executed this Agreement as of the date first written above.

ACME Corporation

[Employee Name]

By: _____

By: _____

Name: _____

Name: _____

Title: _____

Title: _____

Date: _____

Date: _____

---CONTRACT_END---
